

		covenant claim. Further, materials like instructions, scope of work, and reports from the agent, are likely to include the attorney's impressions, conclusions, opinions, or theories, as they were communicated to the agent. Defendant is ordered to serve further responses and production for nos. 58, 59, 61, and 65, within 15 days of the notice of ruling. In connection with this motion, the Court declines to award monetary sanctions, because the results were "split," with each side prevailing on half of the requests at issue. Plaintiff shall give notice of the ruling.
52	<i>Houck v. Cole</i>	The Court denies Defendant/Cross-Complainant Jason Cole's Motion to compel compliance with his subpoena for Plaintiff/Cross-Defendant Stephen Houck's psychiatric records from Plaintiff's mental health therapist, Irvine Family Counseling. If a nonparty disobeys a deposition subpoena, the subpoenaing party may seek a court order compelling the nonparty to comply with the subpoena within 60 days after completion of the deposition record. (CCP § 2025.480(b); see <i>Unzipped Apparel, LLC v. Bader</i> (2007) 156 Cal.App.4th 123, 127.) "A written notice and all moving papers supporting a motion to compel an answer to a deposition question or to compel production of a document or tangible thing from a nonparty deponent must be personally served on the nonparty deponent unless the nonparty deponent agrees to accept service by mail at an

address specified on the deposition record." (Cal. Rules of Court, rule 3.1346.)

Here, the Proof of Service indicates that the moving papers were "hand delivered" to Irvine Family Counseling. It is not clear if this is the equivalent of personal service based on the facts contained in the Proof of Service.

Moving to the merits of the motion, the two legal mainstays for the protection of plaintiff's medical information are the Constitutional right of privacy (Cal Const. Art. I §1) and the psychotherapist-patient privilege (Evid. Code, § 1014). California recognizes a Constitutional right of privacy protecting discovery of a person's medical information. The courts have emphasized that a patient's medical conditions constitute "a quintessential zone of human privacy." (*Pettus v. Cole* (1996) 49 Cal.App.4th 402, 441.) Privacy protection extends to protection of information about one's medical conditions and medical history, as well as to any medical records.

When a patient makes a claim for personal injuries, the right of privacy regarding "an issue concerning the condition of the patient" is waived "if such issue has been tendered by the patient" by filing suit for related injuries. (Evid. Code, § 996 [the "patient-litigant exception"]; see also *Roberts v. Superior Court* (1973) 9 Cal.3d 330, 339; *Davis v. Superior Court* (1992) 7 Cal.App.4th 1008, 1011, fn. 2.)

However, a "patient-litigant" does not waive automatically all medical privacy. "Plaintiff is not compelled, as a condition to entering the courtroom, to discard entirely her mantle of